

(a) or paragraph (b) of subsection (1) of section one of this Act;

“Gas undertakers,” “undertakers” and “local authority” have, respectively, the same meanings as in the Gas Regulation Act, 1920;

10 & 11

Geo. 5. c.28.

“Registered company” means a company as defined by the Companies Act, 1929.

19 & 20

Geo. 5. c.23.

(2) In the application of this Act to Scotland, references to the Minister of Health shall be construed as references to a Secretary of State.

5.—(1) This Act may be cited as the Gas Undertakings Act, 1932, and this Act and the Gas Undertakings Acts, 1920 and 1929, may be cited together as the Gas Undertakings Acts, 1920 to 1932.

Short title,
citation and
extent.

(2) This Act shall not extend to Northern Ireland.

CHAPTER 41.

An Act to amend the law with respect to Customs in the Isle of Man. [12th July 1932.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I.

PROVISIONS AS TO ORDERS CORRESPONDING TO ORDERS MADE UNDER 22 & 23 GEO. 5. C. 8, AS AMENDED.

1.—(1) Where an order is made by the Treasury under section seven of the Finance Act, 1932, directing that goods of any class or description for the time being included in the First Schedule to the Import Duties Act, 1932, shall cease to be so included, the Governor may by order direct that goods of the classes and descriptions specified in the Treasury order shall cease to be included in the First Schedule to the first Act of 1932.

Provisions
as to orders
affecting
Schedule I
of 22 & 23
Geo. 5. c.16.
22 & 23
Geo. 5. c. 8.
22 & 23
Geo. 5. c. 25.

PART I.
—*cont.*

(2) Where an order made by the Treasury as aforesaid is varied or revoked, any corresponding order made by the Governor under this section may be varied or revoked accordingly by a subsequent order of the Governor.

(3) Any order made by the Governor under this section and any order made by the Governor after the commencement of this Act under section one of the first Act of 1932, shall (if it has not previously ceased to have effect under the provisions of this Part of this Act) cease to have effect on the expiration of a period of twenty-eight days from the date on which Tynwald next sits after the making of the order, unless at some time before the expiration of that period it has been approved by resolution passed by Tynwald, but without prejudice to anything previously done thereunder or to the making of a new order.

Power to
impose
additional
duties on
goods
chargeable
with general
ad valorem
duty.

2.—(1) The Governor may from time to time by order direct that, on the removal or importation into the Isle of Man of goods of such classes and descriptions as are specified in any order for the time being in force made by the Treasury (whether before or after the commencement of this Act) under section three of the Import Duties Act, 1932, there shall be payable, subject to and in accordance with the Treasury order, such additional duties of customs as are specified in the Treasury order.

(2) Any duty payable by virtue of an order made under this section shall be payable in addition to the general ad valorem duty, and any duty so payable is in this Act referred to as an “additional duty.”

(3) Any duty payable by virtue of an order made under this section shall be payable as from such date as may be specified in the order, not being earlier than the date of the order or the date from which the duty is payable under the corresponding Treasury order :

Provided that in a case where, before the commencement of this Act, Tynwald has resolved, in accordance with section two of the Act of 1887, that it is expedient to impose the duties of customs specified in any order made by the Treasury as aforesaid, any order

made by the Governor under this section may direct that those duties shall be payable as from the date of the resolution.

PART I.
—cont.

(4) Any duty payable by virtue of an order made under this section shall, for the purpose of the provisions of Part I of the first Act of 1932 (other than the provisions of section one and section five thereof) be deemed to be payable under that Part of that Act, and accordingly the said provisions of that Act shall be construed as if references to the general ad valorem duty included references to an additional duty.

(5) Where an order made by the Treasury under section three of the Import Duties Act, 1932, is varied or revoked, any corresponding order made by the Governor under this section may be varied or revoked accordingly by a subsequent order of the Governor.

(6) Subject to the provisions of the next following subsection, any order made by the Governor under this section shall (if it has not previously ceased to have effect under the provisions of this Part of this Act) cease to have effect on the expiration of a period of twenty-eight days from the date on which Tynwald next sits after the making of the order, unless at some time before the expiration of that period it has been approved by resolution passed by Tynwald, but without prejudice to anything previously done thereunder or to the making of a new order.

(7) The provisions of the last foregoing subsection shall not apply in a case where, before the commencement of this Act, Tynwald has resolved, in accordance with section two of the Act of 1887, that it is expedient to impose the customs duties specified in the order of the Governor, and any such resolution (so far as it relates to the said duties) shall, notwithstanding anything in the said section, continue to have effect thereunder until the expiration of one month after the commencement of this Act or until the Governor makes such an order as aforesaid, whichever first occurs.

3.—(1) The Governor may from time to time by order direct that, on the removal or importation into the Isle of Man of goods of such classes and descriptions as are specified in any order for the time being in force

Power to
confer pre-
ference in
case of

PART I.
—cont.
certain
foreign
goods.

made by the Treasury under section seven of the Import Duties Act, 1932, being goods which are shown to the satisfaction of the Commissioners to have been consigned from and grown, produced or manufactured in the foreign country specified in the Treasury order, the general ad valorem duty or any additional duty or both such duties shall, as from such date as may be specified in the Governor's order (not being earlier than the date of the order or the date specified in that behalf in the Treasury order), be payable at the reduced rate specified in the Treasury order or, if the Treasury order so provides, shall not be payable.

(2) Where any such order is made by the Governor, the provisions of Part I of the first Act of 1932 as amended by this Act shall have effect accordingly.

(3) Where an order made by the Treasury as aforesaid is varied or revoked, any corresponding order made by the Governor under this section may be varied or revoked accordingly by a subsequent order of the Governor.

(4) Any regulations made by the Board of Trade under subsection (2) of section seven of the Import Duties Act, 1932, prescribing the conditions which must be fulfilled in order to establish that goods have been grown, produced or manufactured in a foreign country specified in an order made under that section, shall extend to the Isle of Man, and the Commissioners may in any case require a person removing or importing goods into the Isle of Man to furnish, in such form as they may prescribe, proof that the conditions so prescribed by the regulations have been fulfilled, and if such proof is not furnished to the Commissioners' satisfaction, the goods shall not be deemed to be goods grown, produced or manufactured in that country.

Power to
impose
supplement-
ary duties
in case of
foreign
discrimina-
tion.

4.—(1) The Governor may by order direct that, on the removal or importation into the Isle of Man of goods of such classes and descriptions as are specified in an order for the time being in force made by the Board of Trade under section twelve of the Import Duties Act, 1932, being goods produced or manufactured in the foreign country specified in the order of the Board of Trade, there shall be payable such duties of customs as are

specified in the order of the Board of Trade, and any duty so directed to be payable shall for all purposes be deemed to be payable under this section.

PART I.
—*cont.*

(2) Any duty payable under this section on any goods shall be payable in addition to any other duty of customs payable on those goods.

(3) Where an order made by the Board of Trade as aforesaid is varied or revoked, any corresponding order made by the Governor under this section may be varied or revoked accordingly by a subsequent order of the Governor.

(4) It shall be lawful for the Commissioners, on the removal or importation into the Isle of Man of any goods which, being produced or manufactured in any particular foreign country, would be liable to duty under this section and which are consigned either from that foreign country or from such other countries as the Board of Trade may have directed under subsection (5) of the said section twelve, to require the person removing or importing the goods to furnish to the Commissioners, in such form as they may prescribe, proof with respect to the country in which the goods were produced or manufactured, and unless proof is furnished to the satisfaction of the Commissioners, that the goods were produced or manufactured elsewhere than in the first-mentioned country, the goods shall be deemed to be goods produced or manufactured in the first-mentioned country.

5. If and when an order made by the Treasury or by the Board of Trade under the Import Duties Act, 1932, ceases to have effect under section nineteen of that Act, or an order made by the Treasury under section seven of the Finance Act, 1932, ceases to have effect under the said section nineteen as applied by the last-mentioned section, any corresponding order made by the Governor under the foregoing provisions of this Part of this Act or under section one or section two of the first Act of 1932 shall (if it has not previously ceased to have effect under the provisions of this Part of this Act) cease to have effect accordingly, but without prejudice to anything previously done thereunder or to the making of a new order.

Effect of
orders
ceasing to
have effect
under s. 19
of 22 & 23
Geo. 5. c. 8.

PART I.
—cont.Power to
revoke
orders made
under s. 3
of 22 & 23
Geo. 5. c. 16.

6. The Governor may revoke or vary any order made by him under section three of the first Act of 1932 to such extent as may be necessary to secure that that section applies to the same territories as those to which section five of the Import Duties Act, 1932, applies by virtue of Orders in Council made from time to time under the last-mentioned section as amended by section eight of the Finance Act, 1932.

PART II.

MISCELLANEOUS AND GENERAL.

Imposition
of duties on
tea.

7.—(1) On and from the twenty-sixth day of April, nineteen hundred and thirty-two, there shall, until the first day of August, nineteen hundred and thirty-three, be payable on tea removed or imported into the Isle of Man duties of customs at the following rates :—

Tea, not being an Empire product

the lb. Fourpence.

Tea, being an Empire product

the lb. Twopence.

9 & 10

Geo. 5. c. 74.

(2) In this section the expression “ Empire product ” has the same meaning as in section five of the Act of 1919.

Reduction
of duties on
ale and beer.

8. On and from the first day of June, nineteen hundred and thirty-two, in lieu of the customs duties theretofore payable on ale and beer, there shall, until the first day of August, nineteen hundred and thirty-three, be payable on ale and beer removed or imported into the Isle of Man a duty of customs at the following rate :—

For every thirty-six gallons, where the £ s. d.

worts were before fermentation of a

specific gravity of one thousand and

fifty-five degrees - - - - 3 17 0

with a proportionate increase or decrease according to the specific gravity of the worts thereof before fermentation.

Continua-
tion and
alteration
of duties
on silk.

15 & 16

Geo. 5. c. 56.

16 & 17

Geo. 5. c. 27.

9.—(1) Subject to the provisions of this section, the duties of customs imposed by section seven of the Act of 1925 and section eight of the Act of 1926 on silk and artificial silk removed or imported into the Isle of Man shall continue to be payable as from the first day of August, nineteen hundred and thirty-two, until the first day of August, nineteen hundred and thirty-three.

(2) As from the first day of June, nineteen hundred and thirty-two, until the first day of August, nineteen hundred and thirty-three, a duty of customs equal to ten per cent. of the value of the articles shall be payable (in addition to the duties of customs payable under the enactments aforesaid as extended by section two of the Act of 1931 and by this section) on the removal or importation into the Isle of Man of yarns, tissues and other articles (not being articles of apparel) made wholly or partly of silk or artificial silk.

PART II.
—cont.

21 & 22
Geo. 5. c. 34.

(3) As from the first day of June, nineteen hundred and thirty-two, until the first day of August, nineteen hundred and thirty-three, in the case of an article of apparel made wholly or partly of silk or artificial silk there shall, in lieu of the duties of customs payable under the enactments aforesaid as so extended, be payable, on the removal or importation thereof into the Isle of Man, whichever is the higher of the two following duties, that is to say—

- (a) a duty of customs equal to the aggregate amount of the duty of customs which would otherwise have been payable under the enactments aforesaid as so extended, and of a duty equal to ten per cent. of the value of the article;
- (b) a duty of customs calculated at the rate shown in the First Schedule to this Act on the weight of the article.

(4) The provisions of subsection (2) of section seven of, and Part II of the Schedule to, the Act of 1925 shall apply to the duties imposed by this section as they apply to the duties continued by this section :

Provided that paragraphs 1 and 2 of the said Part II shall not apply in relation to any duty which is calculated by reference to value.

(5) Subsection (2) of section eight of the Act of 1926 (which gives a person removing or importing into the Isle of Man for his own use and not for sale an article of apparel made wholly or partly of silk or artificial silk the option of having the article charged with duty by reference to the whole weight thereof) shall be deemed to have ceased to have had effect as from the first day of June, nineteen hundred and thirty-two.

PART II.

—cont.

Removal of
former duty
on pottery.
17 & 18
Geo. 5. c. 20.

10.—(1) The duty of customs imposed on translucent or vitrified pottery by section fourteen of the Act of 1927 shall cease to be payable.

(2) This section shall be deemed to have had effect as from the first day of June, nineteen hundred and thirty-two.

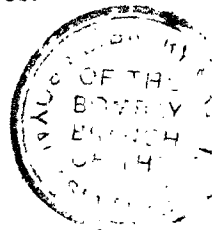
Continua-
tion of cer-
tain duties.

11. The duties of customs imposed on goods removed or imported into the Isle of Man, being goods of the descriptions set out in the first column of the following table, by the respective enactments set out in the second column of that table shall continue to be payable as from the first day of August, nineteen hundred and thirty-two, until the dates respectively set out in the third column of that table :—

TABLE.

	Description of goods.	Enactment imposing duty.	Date to which duty continued.
18 & 19 Geo. 5. c. 38.	Buttons - - - -	Section 17 of the Act of 1928.	28th April, 1933.
	Cinematograph films -	Section 6 of the Act of 1925 as amended by section 12 of the Act of 1927 and section 14 of the Act of 1928.	1st August, 1933.
	Clocks and watches and component parts of clocks and watches.	Section 6 of the Act of 1925.	1st August, 1933.
14 & 15 Geo. 5. c. 24.	Cocoa - - - -	Section 4 of the Act of 1924.	1st August, 1933.
	Enamelled hollow-ware -	Section 17 of the Act of 1928.	13th June, 1933.
	Hops and extracts, essences and other similar preparations (other than hop oil) made from hops.	Section 5 of the Act of 1925.	1st August, 1933.
20 & 21 Geo. 5. c. 1.	Hop oil - - - -	Section 3 of the Act of 1929.	1st August, 1933.

Description of goods.	Enactment imposing duty.	Date to which duty continued.
Matches - - -	Section 7 of the Act of 1927.	1st August, 1933.
Mechanical lighters, and component parts of mechanical lighters.	Section 8 of the Act of 1928.	1st August, 1933.
Motor cars, including motor bicycles and motor tricycles, and their accessories and component parts.	Section 6 of the Act of 1925 as amended by section 6 of the Act of 1926 and section 11 of the Act of 1927.	1st August, 1933.
Musical instruments, including gramophones, pianolas, and other similar instruments; and accessories and component parts of musical instruments, and records and other means of reproducing music.	Section 6 of the Act of 1925.	1st August, 1933.
Spirits - - -	Section 2 of the Act of 1930.	1st August, 1933.
Sweets - - -	Section 2 of the Act of 1929.	1st August, 1933.
Tobacco - - -	Section 19 of the first Act of 1932.	1st August, 1933.
Wines - - -	Section 1 of the Act of 1927.	1st August, 1933.

PART II.
—cont.16 & 17
Geo. 5. c. 27.20 & 21
Geo. 5. c. 42.

12.—(1) As from the twenty-sixth day of April, nineteen hundred and thirty-two, the duties of customs imposed by section thirteen of the first Act of 1932 on shelled green peas shall be payable at the rate of one pound, seventeen shillings and fourpence the hundred-weight instead of at the rate theretofore payable.

Amendment
of s. 13 of
22 & 23
Geo. 5. c. 16.

(2) The said section thirteen shall have effect, and shall be deemed as from the said twenty-sixth day of April to have had effect, as if the Horticultural Products (Emergency Customs Duties) No. 4 Order,

PART II. 1932, were included among the orders mentioned in
—cont. subsection (2) of that section.

Repeal of
certain
provisions
of 22 & 23
Geo. 5. c. 16.

13. The following provisions of the first Act of 1932 shall be deemed to have ceased to have had effect as from the twenty-sixth day of April, nineteen hundred and thirty-two, that is to say—

- (a) section twelve (which imposes a duty of customs on certain articles in respect of abnormal importations); and
- (b) section sixteen (which provides that duties payable under Part II of the said Act shall be payable in addition to other duties of customs).

Short title,
interpreta-
tion and
repeal.

14.—(1) This Act may be cited for all purposes as the Isle of Man (Customs) (No. 2) Act, 1932, and may be cited for the purpose of any future Act relating to customs in the Isle of Man as the second Act of 1932.

(2) In this Act and in any future Act relating to customs in the Isle of Man—

- (a) the expression “the Governor” shall mean the Lieutenant-Governor of the Isle of Man;
- (b) the expression “Tynwald” shall mean the Court of Tynwald in the Isle of Man;
- (c) the expression “the Commissioners” shall mean the Commissioners of Customs and Excise;
- (d) the expression “the general ad valorem duty” shall have the same meaning as it has in Part I of the first Act of 1932;
- (e) a reference to an Act of any year shall be deemed to be a reference to the Isle of Man (Customs) Act of that year;
- (f) a reference to the first Act of 1932 shall be deemed to be a reference to the Isle of Man (Customs) Act, 1932.

(3) The enactments set out in the Second Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

SCHEDULES.

FIRST SCHEDULE.

Section 9.

ALTERNATIVE RATES OF DUTY ON ARTICLES OF APPAREL MADE WHOLLY OR PARTLY OF SILK OR ARTIFICIAL SILK.

Description of Article.	Rate of Duty.	
	In the case of articles containing silk alone or containing both silk and artificial silk.	In the case of articles containing artificial silk alone.
	the lb. s. d.	the lb. s. d.
Where the article is made wholly of silk or artificial silk, or where the value of the silk or artificial silk component exceeds twenty per cent. of the aggregate of the values of all the components of the article - - -	12 0	5 0
Where the value of the silk or artificial silk component exceeds five per cent. but does not exceed twenty per cent. of the aggregate of the values of all the components of the article - -	4 0	1 8
Where the value of the silk or artificial silk component does not exceed five per cent. of the aggregate of the values of all the components of the article - - - - -	0 9	0 4

Section 14.

SECOND SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
63 & 64 Vict. c. 31.	The Isle of Man (Customs) Act, 1900.	The whole Act.
16 & 17 Geo. 5. c. 27.	The Isle of Man (Customs) Act, 1926.	Subsection (2) of section eight.
17 & 18 Geo. 5. c. 20.	The Isle of Man (Customs) Act, 1927.	Section fourteen.
21 & 22 Geo. 5. c. 34.	The Isle of Man (Customs) Act, 1931.	Section two so far as it relates to translucent or vitrified pottery.
22 & 23 Geo. 5. c. 16.	The Isle of Man (Customs) Act, 1932.	Section twelve, paragraph (a) of section fifteen, and sections sixteen and eighteen.

CHAPTER 42.

An Act to grant money for the purpose of certain local loans out of the Local Loans Fund, and for other purposes relating to local loans.

[12th July 1932.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Grants for
public
works.

1.—(1) There may be issued by the National Debt Commissioners for the purposes of local loans by the Public Works Loan Commissioners any sum or sums not exceeding in the whole the sum of eighteen million pounds.